26VECV01098 26VECV01098

County: los-angeles

Division: Civil Law and Motion

Department: W

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Case Number: 26VECV01098 Hearing Date: August 13, 2026 Dept: W

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR
THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

GAYANE
KHACHATRYAN,

Plaintiff,

vs.

DOORDASH, INC.

Defendants.

CASE NO: 26VECV01098

ORDER
RE:

DEFENDANT
DOORDASH, INC.'S

MOTION
TO COMPEL ARBITRATION

AND
STAY PROCEEDINGS

Dept. W

8:30 a.m.

August 13, 2026

The Court GRANTS Defendant's Motion to Compel Arbitration.

Background

This is a breach of contract case. Plaintiff Gayane Khachatryan is an independent contractor who delivers food using an app developed by Defendant Doordash Inc. In early 2026, Plaintiff initiated arbitration proceedings against Defendant. Plaintiff alleges that Defendant Doordash Inc. breached the parties' contract when it refused to pay mandatory arbitration fees as required under the parties' arbitration agreement.

Now, Defendant moves to compel Plaintiff into arbitration.

Discussion

Defendant Doordash Inc. moves to compel Plaintiff into arbitration. (Mot. to Compel Arb., p. 10:21-26.)

When a party has filed a petition to compel arbitration, the trial court must determine in a summary proceeding whether an "agreement to arbitrate the controversy exists." (CIV §§ 1281.2, 1290.2; Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 412–413.) The party seeking arbitration has the "burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 842.) To be valid, there must be a voluntary agreement to arbitrate, meaning the parties to the agreement must have mutually consented to contract. (CIV § 1550; Berg v.

Traylor (2007) 148 Cal.App.4th 809, 816-20.)

i) Defendant’s Burden

To begin, Defendant bears the burden to prove the existence of a valid arbitration agreement by a preponderance of the evidence. (Ruiz, supra, at 842.)

Here, Defendant provides the declaration of Shawn Master, an employee of Defendant who has personal knowledge of the account-creation process for Doordash. (Master Decl. ¶ 2.) Mr. Master explains that on January 22, 2025, Plaintiff signed up for a Doordash account. (Id. ¶ 11.) In order to sign up for this account, Plaintiff had to enter his email address and click “continue” on a standardized screen. (Id. ¶ 12.) Above this button was a prompt which read, “By tapping ‘Continue,’ you agree to the Independent Contractor Agreement and have read the Dasher Privacy Policy.” (Ibid.) A hyperlink to the Independent Contractor Agreement (herein ICA) was included on this page. (Ibid.)

Mr. Master provides a copy of the ICA that Plaintiff agreed to when he clicked “continue”. (Id. Ex. A.) Paragraph 13 of this agreement includes a mutual arbitration provision, which states, “Contractor and DoorDash agree to this Mutual Arbitration Provision, which is governed by the Federal Arbitration Act (9 U.S.C. §§ 1-16) (“FAA”) and requires arbitration of any and all disputes arising out of or relating to this Agreement.” (Id. Ex. A, ¶ 13.) Defendant has provided evidence that an arbitration agreement existed between the parties.

Based on this declaration and evidence, the Court finds that Defendant has met its initial burden to establish the existence of an arbitration agreement by a preponderance of the evidence.

ii) Plaintiff’s Shifted Burden

Given that Defendant has established the existence of a valid agreement, the burden now shifts to Plaintiffs to dispute the agreement’s validity. “[A] party opposing the petition [for arbitration] bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.” (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 842.)

Plaintiff does not dispute the existence of this agreement. In fact, Plaintiff’s claim for breach of contract with regards to arbitration specifically relies on the existence of this agreement. (Compl. p. 3.) Plaintiff’s claim even includes a copy of the agreement, which includes the arbitration provision. (Compl. Ex. 1, ¶ 13.) Thus, it is undisputed that there is a valid and enforceable arbitration agreement in this case

Rather than dispute the existence of the agreement, Plaintiff argues that Defendant has forfeited its right to arbitration. (Opp. p. 2:4-16.) Plaintiff asserts that, on January 12, 2026, they initiated arbitration proceedings through the American Arbitration Association. (Khachatryan Decl. ¶ 12.) The AAA then sent an invoice for initial arbitration fees to Defendant, requesting $2,100.00 to be paid no later than February 11, 2026. (Ibid.) Defendant did not pay this amount. (Id. ¶ 15.) Plaintiff asserts that under CCP § 1281.97, Defendant has defaulted and waived its right to arbitration by failing to pay these fees. (Opp. p. 2:13-16.)

The Court takes multiple issues with this argument. First and foremost, this argument is not just Plaintiff’s Opposition to this motion to compel arbitration – it is also the basis of their underlying lawsuit. In Plaintiff’s Complaint, they allege that, “Defendant willfully and materially breached the parties' written agreement by refusing to pay mandatory arbitration fees as required under the agreement and California Code of Civil Procedure section 1281.97, resulting in administrative closure of the arbitration and waiver of Defendant's arbitration rights.” (Compl. ¶ BC2.) This is the same issue raised in the present motion, meaning Plaintiff has presented inserted his underlying claim into this motion to compel arbitration.

For the purposes of a motion to compel arbitration, the Court only needs to analyze a narrow set of questions: namely, 1) is there a valid arbitration agreement, and 2) does it apply to the case at hand. Here, it is undisputed that there is a valid arbitration agreement. Moreover, the agreement applies to, “arbitration of any and all disputes arising out of or relating to this Agreement.” (Master Decl. Ex. A, ¶ 13.) Defendant’s compliance with the terms of the arbitration agreement clearly arises out of the agreement itself. Thus, this breach of contract claim must go to arbitration.

The Court's second issue with Plaintiff's argument is that CCP § 1281.97 does not apply to the case at hand. CCP § 1281.87 states that, "[i]n an employment or consumer arbitration that requires, . . . if the fees or costs to initiate an arbitration proceeding are not paid within 30 days after the due date the drafting party is in material breach of the arbitration agreement, is in default of the arbitration, and waives its right to compel arbitration under Section 1281.2." (CCP § 1281.87 [emphasis added].) This case is not an employment or consumer arbitration case.

According to Defendant, Plaintiff is an independent contractor, not an employee. Under CCP § 1280(f), employee is defined as, "any current employee, former employee, or applicant for employment. The term includes any person who is, was, or who claims to have been misclassified as an independent contractor…" (CCP § 1280(f).) Thus, Plaintiff's dispute with Defendant does not qualify as an employment case. Additionally, even if Plaintiff were to dispute his classification as an independent contractor, that issue itself is specifically highlighted by the agreement as an arbitrable issue. (Master Decl., Ex. A ¶ 13 ["this Mutual Arbitration Provision . . . requires arbitration of any and all disputes arising out of or relating to this Agreement, including but not limited to Contractor's classification as an independent contractor"].) Because Plaintiff's claim does not fall under CCP § 1281.87, the timing rules of this statute are not persuasive.

Third, Plaintiff's initiation of arbitration is problematic in multiple ways. To begin, Plaintiff initiated arbitration with the AAA. However, the specific terms of the agreement state that, "Any arbitration shall be governed by JAMS" – a different private arbitration company. (Master Decl., Ex. A ¶ 13.11.) Thus, Plaintiff initiated arbitration in the wrong venue.

Additionally, it is contested that Plaintiff properly notified Defendant of the initiation of arbitration with AAA. In the Opposition, Plaintiff provides a copy of the notification and invoice sent to Defendant, informing it that arbitration has been initiated. (Khachatryan Decl. Ex. B.) This notice was sent to "". (Ibid.) According to Defendant, this was an invalid email address. (Reply, p. 3:15-24; see also Khachatryan Decl. Ex. E, p. 2.) Moreover, nowhere in the agreement is "" listed as a valid email for initiating arbitration. Thus, it's unclear whether Defendant ever received notice that Plaintiff had initiated arbitration, meaning Defendant has not met their burden.[1]

For all of these reasons, the Court finds Plaintiff's opposition to this motion unpersuasive. Thus, Plaintiff has failed to meet his shifted burden. Therefore, the Court GRANTS Defendant's Motion to Compel Arbitration.

Conclusion

The Court GRANTS Defendant's Motion to Compel Arbitration. The Court expects the parties to move expeditiously to initiate and complete the arbitration. A Status Conference is set on January 13, 2027, at 8:30 a.m.

IT
IS SO ORDERED. Defendant TO GIVE NOTICE.

August 13, 2026